



AN ACT GENERALLY REVISING LAWS RELATED TO THE MONTANA CHILD SUPPORT GUIDELINES;
~~REQUIRING CERTAIN EXPERTISE FOR STAFF;~~ ESTABLISHING THE GUIDELINES REVIEW ~~OVERSIGHT~~
COMMITTEE AND ASSOCIATED DUTIES OF THE COMMITTEE; ~~ESTABLISHING REPORTING~~
~~REQUIREMENTS; REQUIRING THE DEPARTMENT OF PUBLIC HEALTH AND HUMAN SERVICES TO~~
~~CONTRACT WITH A PRIVATE SOFTWARE VENDOR;~~ AND AMENDING SECTION 40-5-209, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 40-5-209, MCA, is amended to read:

**"40-5-209. Child support guidelines -- periodic review -- GUIDELINES REVIEW COMMITTEE --
~~oversight committee -- reporting requirement.~~** (1) The department shall adopt uniform child support
guidelines to be used to determine minimum child support amounts. In addition to giving notice and publicizing
the rules as provided in the Montana Administrative Procedure Act, the department shall give notice to the
supreme court, the district courts, and the state bar of Montana prior to adopting the guidelines.

(2) The guidelines must consider the factors set forth in 40-4-204(2) and 40-6-116(5).

(3) At least once every 4 years, the department shall:

(a) review the uniform child support guidelines employed to determine child support obligations to
ensure that their application results in the determination of appropriate child support award amounts; and

(b) provide for review of the guidelines by a certified public accountant as needed; and

~~(b)~~(c) propose any appropriate modification to the legislature.

(4) (a) There is a guidelines review committee within the department.

(b) The committee shall:

(i) meet at least quarterly; and

(ii) research, develop, and recommend proposed policy changes to the department regarding the Montana child support guidelines.

(5) (a) The department shall appoint members to the committee and provide for its administration in accordance with applicable federal regulations and guidelines.

(b) The department shall ensure that the committee includes:

(i) one member with expertise in child support who is not an employee of the department; and

(ii) one member with lived experience related to child support.

(6) The public members of the committee shall serve without compensation but may be reimbursed as provided in 2-18-501 through 2-18-503, subject to available funding.

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Section 2. Notification to tribal governments. The secretary of state shall send a copy of [this act] to each federally recognized tribal government in Montana.

- END -

I hereby certify that the within bill,
HB 352, originated in the House.

Chief Clerk of the House

Speaker of the House

Signed this _____ day
of _____, 2025.

President of the Senate

Signed this _____ day
of _____, 2025.

HOUSE BILL NO. 352

INTRODUCED BY C. SCHOMER, D. LENZ

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